

26STCV02062 26STCV02062

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-09-04

Motion: DEFENDANT CITY OF LOS ANGELES' DEMURRER AND MOTION TO STRIKE COMPLAINT

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Case Number: 26STCV02062 Hearing Date: September 4, 2026 Dept: 733

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

SEAN TYLER, an individual,

Plaintiff,

vs.

CITY OF LOS ANGELES, a Government Entity; and DOES 1 through
100, inclusive,

Defendants.

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CASE

NO.: 26STCV02062

Lead Case No.:

24STCV29382

[TENTATIVE] ORDER RE: DEFENDANT

CITY OF LOS ANGELES' DEMURRER AND MOTION TO STRIKE COMPLAINT

Dept. 733

8:30 a.m.

September 4, 2026

I.

INTRODUCTION

This is a
disability discrimination action.

On January 21, 2026,
Plaintiff Sean Tyler ("Plaintiff") filed a complaint against City of

Los Angeles ("Defendant"), alleging
causes of action for (1) Unlawful Discrimination on the Basis of Disability in
Violation of FEHA, (2) Failure to Accommodate, (3) Failure to Engage in
Interactive Process, (4) Failure to Prevent Discrimination, and (5) FEHA
Retaliation.

On

February 13, 2026, the instant case was deemed related to 24STCV29382 ("Lead Case"). In the Lead Case, the operative second amended complaint ("SAC") alleges causes of action for (1) Retaliation in Violation of Labor Code 1102.5 and (2) FEHA Retaliation.

On

April 10, 2026, Defendant filed the instant demurrer.

On

August 24, 2026, Plaintiff filed an opposition.

On

August 31, 2026, Defendant filed a reply.

II.

LEGAL STANDARD

Demurrer

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.)

When a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (*Ibid.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.)

Motion to Strike

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike a pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

III.

JUDICIAL NOTICE

Defendant requests
judicial notice of the following pursuant to Evidence Code sections

452 and 453:

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Claim for Damages, Claim No. C24-08922, filed by
Plaintiff Sean Tyler with the City of Los Angeles on April 10, 2024, together
with the addendum filed on July 26, 2024

-

Complaint for Damages filed by Plaintiff Sean Tyler on
January 21, 2026, in the present action, Tyler v. City of Los Angeles, Case No.
26STCV02062

-

Court's Order dated November 12, 2025, dismissing the
Fourth Cause of Action (Race Discrimination), Fifth Cause of Action (Racial
Harassment), and Sixth Cause of Action (Failure to Prevent Discrimination) with
prejudice in the related case, Tyler v. City of Los Angeles, Case No.

24STCV29382

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Minute Order dated February 13, 2026, deeming Tyler v.

City of Los Angeles, Case No. 24STCV29382, and the present action, Tyler v.

City of Los Angeles, Case No. 26STCV02062, related cases and assigning both to the Honorable Gary D. Roberts in Department 733

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California Civil Rights Department ("CRD") Notice of

Case Closure and Right to Sue letter, CRD Matter No. 202411-26976507, issued

November 7, 2024, in the matter of Tyler v. City of Los Angeles

-

Court's Order re: Demurrer dated April 15, 2025, in the

related case, Tyler v. City of Los Angeles, Case No. 24STCV29382, sustaining

the City's demurrer to all five causes of action in Plaintiff's original

Complaint

-

initial Complaint filed by Plaintiff Sean Tyler on

November 8, 2024, in Tyler v. City of Los Angeles, Case No. 24STCV29382

-

First Amended Complaint ("FAC") filed by Plaintiff Sean

Tyler on May 15, 2025, in the related case, Tyler v. City of Los Angeles, Case

No. 24STCV29382

-

Second Amended Complaint ("SAC") filed by Plaintiff

Sean Tyler on January 9, 2026, in the related case, Tyler v. City of Los

Angeles, Case No. 24STCV29382

-

Court's Minute Order dated August 12, 2025, in the

related case, Tyler v. City of Los Angeles, Case No. 24STCV29382, sustaining

the City's demurrer to the Fourth, Fifth, and Sixth Causes of Action in

Plaintiff's First Amended Complaint

The Court grants

Defendant's request.

IV.

DISCUSSION

Demurrer

Defendant demurs

to all causes of action alleged in Plaintiff's complaint.

a. Claim

Splitting

Defendant first

argues that Plaintiff has engaged in claim splitting between the instant

action and the Lead Case. In the

Lead Case, Plaintiff originally pled causes of action for (1) Discrimination on

the Basis of Race in Violation of FEHA, (2) Harassment in Violation of FEHA

(Hostile Work Environment), (3) Retaliation in Violation of FEHA, (4) Failure

to Prevent Discrimination and Harassment, and (5) Whistleblower Retaliation.

Plaintiff then filed the operative second amended complaint in the Lead Case,

only alleging causes of action for FEHA Retaliation and Whistleblower

Retaliation. Defendant argues that the disability-related FEHA claims here should have been brought in the Lead

Case, and thus, are now barred.

"The doctrine of claim-splitting is

the notion that a party is "not at liberty to split up his demand, and

prosecute it by piecemeal, or present only a portion of the grounds upon which

special relief is sought, and leave the rest to be presented in a second suit,

if the first fail. There would be no end to litigation if such a practice were

permissible." (Cook v. C.R. England, Inc. (C.D.

Cal. June 21, 2012) 2012 WL 2373258, at *3 (citing United

States v. Haytian Republic (1894)

154 U.S. 118, 125).)

However, "[u]nder California law, the

rule against splitting a cause of action is not independent of the doctrine of res

judicata." (Boyd v. Freeman (2017) 18 Cal.App.5th 847, 858.) So, "when

a plaintiff attempts to divide a primary right and enforce it in two suits,' "

the primary right theory prevents this result in two ways: “ ‘(1) if the first suit is still pending when the second is filed, the defendant in the second suit may plead that fact in abatement ...; [and] (2) if the first suit has terminated in a judgment on the merits adverse to the plaintiff, the defendant in the second suit may set up that judgment as a bar under the principles of res judicata [citation].’ ” (Ibid. (citations omitted).) Thus, California’s rule regarding “claim splitting” is merely an incorporation of claim preclusion principles.

Here, the Lead Case is still pending and has not resulted in a final judgment on the merits, which alone defeats any argument regarding claim splitting. Therefore, the doctrine of “claim splitting” is inapplicable.

b.

Statutory

Abatement

Next, Defendant argues that the instant action should be abated on the ground that it

overlaps with the facts and issues present in the Lead Case.

Under California Code of Civil Procedure section 430.10(c), a defendant may seek the abatement of an action by demurrer when “there is another action pending between the same parties on the same cause of action.” (See *People ex rel. Garamendi v. Am. Autoplan* (1993) 20 Cal.App.4th 760, 770 [“Under the statutory plea in abatement the pendency of another earlier action growing out of the same transaction and between the same parties is a ground for abatement of the second action”]; *Bistawros v. Greenberg* (1987) 189 Cal.App.3d 189, 192 [“an objection to a complaint on the basis that a substantially similar lawsuit is pending is properly raised by demurrer provided the defect appears on the face of the pleading or from judicially noticed facts”].)

“A plea in abatement pursuant to section 430.10, subdivision (c), may be made [] when there is another action pending between the same parties on the same cause of action.” (Plant

Insulation Co. v. Fibreboard Corp. (1990) 224 Cal.App.3d 781, 789, (emphasis in original).) The statutory plea in abatement requires (1) that both actions are pending in the courts of the same state (Leadford v. Leadford (1992) 6 Cal.App.4th 571, 575); (2) “absolute identity of parties” (Plant Insulation Co. v. Fibreboard Corp. (1990) 224 Cal.App.3d 781, 788); and (3) identical cause of action in both suits, so that a judgment in the first action would be res judicata on the claim in the present lawsuit. (Bush v. Sup.Ct. (Rains) (1992) 10 Cal.App.4th 1374, 1384).

“An order of abatement issues as a matter of right [i.e., mandatory] not as a matter of discretion [i.e., discretionary] where the conditions for its issuance exist. [Citation.] This is the case whether a right to abatement exists under the statutory plea in abatement [citation] or the judicial rule of exclusive concurrent jurisdiction [citation].” (People ex rel. Garamendi, supra, 20 Cal.App.4th at pp. 770-771; see also Tinney v. Tinney (1963) 211 Cal.App.2d 548, 552 [“Abatement is available as a matter of right only where the following two conditions are met: (1) that both suits are predicated on the same cause of action, and (2) that both suits are pending in the same jurisdiction.”].) “Where abatement is required, the second action should be stayed, not dismissed.” (People ex rel. Garmendi, supra, 20 Cal.App.4th 771.)

There is no dispute that the instant action and the Lead Case are currently pending before this Court, and that the parties in both actions are identical. The ground for abatement lies in whether both the instant action and the Lead Case are predicated on the same cause of action. “A single cause of action cannot be the basis for more than one lawsuit.” (Pitts v. City of Sacramento (2006) 138 Cal.App.4th 853, 856.) “In the highly abstract formulation for what constitutes a single cause of action (endlessly iterated verbatim because, perhaps, no one really understands it, the analysis focuses on identifying a primary right of the plaintiff and the defendant's breach of a corresponding primary duty.” (Ibid. (citation omitted).)

Plaintiff's original complaint in the Lead Case arises from Plaintiff's employment with Defendant in the Los Angeles Attorney's Office as a paralegal in January 2018 at the City Attorney's office. (See Lead Case Compl at ¶ 8.) Plaintiff alleges that “From the onset of the COVID emergency precautions and procedures the City Attorney's

Office allowed CITY employees to work remotely. This remote work took place up until approximately February 28, 2023, when the State of California officially ended the COVID emergency. During the aforementioned time period, the City Attorney's Office was given special and temporary authorization to use sensitive systems remotely during the COVID pandemic from the California Department of Justice. These remote systems are identified as CJIS/CLETS/CORI." (Id. at ¶ 9; Lead Case FAC at ¶ 8; Lead Case SAC at ¶ 9.)

After the COVID emergency, "the City Attorney continued to unlawfully allow the City Attorney Office and its staff to access and use CJIS/CLETS/CORI systems up until March 1, 2024." (See Lead Case Comp., ¶ 9; Lead Case FAC at ¶ 9; Lead Case SAC at ¶ 9.) Plaintiff then alleges that he complained about this noncompliance and suffered adverse employment actions because of it. (See Lead Case Compl., ¶¶ 10-11; Lead Case FAC at ¶¶ 10, 12, 14-16; Lead Case SAC at ¶¶ 10, 12, 14-16.)

However, the complaint in this action alleges wholly new facts. Here, Plaintiff alleges that he was medically diagnosed with a disability; in or about July 2024, Plaintiff requested Defendant to engage in a good faith interactive process to transfer Plaintiff to another department; and Defendant did not take any steps to accommodate Plaintiff's disability. (Compl., ¶¶ 9-10, 16.)

Thus, the two actions are premised on two separate "primary rights" on entirely different factual grounds – FEHA and whistleblower violations based on Plaintiff's complaints regarding the City Attorney's Office alleged noncompliance with "rules and regulations set forth by the CDOJ and Federal Bureau of Investigations" (Lead Case SAC at ¶ 10) versus FEHA violations based on Plaintiff's alleged disability. (Compl., ¶¶ 9-10; see *Crowley v. Katleman* (1994) 8 Cal.4th 666, 681 ["a 'cause of action' is comprised of a 'primary right' of the plaintiff, a corresponding 'primary duty' of the defendant and a wrongful act by the defendant constituting a breach of that duty"; "the violation of a single primary right gives rise to but a single cause of action"].)

Furthermore, "[w]hether captioned as one or more causes of action in a complaint, discrimination based on each protected characteristic is a separate claim under FEHA," thus implicating separate primary rights. (*Soria v. Univision Radio Los Angeles, Inc.* (2016) 5 Cal.App.5th 570, 585 fn.4.) Lastly, "[a]lthough the same statutory language that prohibits disability

discrimination also prohibits discrimination based on race, age, sex, and other factors . . . disability discrimination claims are fundamentally different from the discrimination claims based on the other factors." (Wallace v. Cnty. of Stanislaus (2016) 245 Cal.App.4th 109, 122.)

Therefore, the Court cannot conclude that the Lead Case and the instant action are predicated on the "same cause of action" for purposes of statutory abatement.

c.

Disability

Discrimination

A plaintiff alleging discrimination must allege "that (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive." (Guz v. Bechtel National Inc. (2000) 24 Cal.4th 317, 355.)

Here, Plaintiff only alleges conclusory statements that merely reiterate the elements for this cause of action. Plaintiff only alleges that "Defendant knew that Plaintiff had a disability," "Plaintiff was able to perform the essential duties of his position," "Defendant refused to allow Plaintiff to work because of his disability, refused to accommodate and engage in a good faith interactive process due to his disability," and that as a result, Plaintiff lost general "employment benefits." (Compl., ¶¶ 21-26.)

Plaintiff alleges

no supporting facts nor alleges any factual basis for what Plaintiff's disability is. (Avila v. Cont'l Airlines, Inc. (2008) 165 Cal.App.4th 1237, 1249 [finding that the plaintiff did not sufficiently show that the plaintiff suffered from a disability when the plaintiff suffered from an "unspecified condition" and "was hospitalized for three days," as there was no specificity regarding whether plaintiff suffered from a condition that qualified as a disability under Cal. Gov. Code § 12926].) Plaintiff only alleges that he "was medically diagnosed with a disability" and Defendant knew about it. (Compl., ¶ 9; see also id. ¶ 13 ["Subsequently, on August 19, 2025, Plaintiff was diagnosed by his doctor with a life-threatening medical condition

due to returning to work in violation of prior work restrictions”].)

Accordingly, the complaint is void of any factual allegations that Plaintiff suffered from any condition that would be considered a disability under FEHA, given that he only alleged that he possessed an unspecified “medical” or “health condition.” It is “insufficient for [Plaintiff] simply to allege a disability or to identify an injury or physical condition.” (Gelfo v. Lockheed Martin Corp. (2006)140 Cal.App.4th 34, 47.)

d.

Failure

to Accommodate and Failure to Participate in the Interactive Process

Under Government

Code section 12940(m), an employer has a duty to make “reasonable accommodation for the known physical or mental disability of an . . . employee.” (Gov. Code § 12940(m).) To prevail on this cause of action, a plaintiff must prove that “(1) the plaintiff has a disability covered by the FEHA; (2) the plaintiff is a qualified individual (i.e., he or she can perform the essential functions of the position); and (3) the employer failed to reasonably accommodate the plaintiff’s disability.[Citation.]” (Hernandez v. Rancho Santiago Cmty. College Dist. (2018) 22 Cal.App.5th 1187, 1193-1194.)

“The

‘interactive process’ required by the FEHA is an informal process with the employee or the employee’s representative, to attempt to identify a reasonable accommodation that will enable the employee to perform the job effectively. [Citation.] Ritualized discussions are not necessarily required.” (Scotch v. Art Institute of California (2009) 173 Cal.App.4th 986, 1013.) “The employee must initiate the process unless the disability and resulting limitations are obvious.” (Ibid.) However, “[e]ach party must participate in good faith, undertake reasonable efforts to communicate its concerns, and make available to the other information which is available, or more accessible, to one party. Liability hinges on the objective circumstances surrounding the parties’ breakdown in communication, and responsibility for the breakdown lies with the party who fails to participate in good faith.” (Id. at p. 1014.)

It is well established that “the responsibility to initiate the interactive process of fashioning an appropriate accommodation lies primarily with the employee.” (Spitzer v. The Good Guys, Inc. (2000) 80 Cal.App.4th 1376, 1385.) “ ‘Where the disability, resulting limitations, and necessary reasonable accommodations, are not open, obvious, and apparent to the employer,’ ” ... the employee bears the burden “ ‘to specifically identify the disability and resulting limitations, and to suggest the reasonable accommodations.’ ” (Scotch, supra, 173 Cal.App.4th at p. 1013.) Additionally, “[a]n employer does not have to accept an employee’s subjective belief that he is disabled and may rely on medical information in that respect.” (Arteaga, supra, 163 Cal.App.4th at p. 347 [finding the employee’s description of pain and numbness were subjective and the employer was entitled to rely on the fact that the physician returned the employee to work without any restrictions].)

“While a claim of failure to accommodate is independent of a cause of action for failure to engage in an interactive dialogue, each necessarily implicates the other.” (Moore v. Regents of Univ. of California (2016) 248 Cal. App. 4th 216, 242.)

As stated above, Plaintiff has not adequately alleged that he has a disability covered by FEHA. Nonetheless, Plaintiff still fails to allege sufficient and nonconclusory facts to support these causes of action. Plaintiff alleges that he “requested that Defendant engage in a good faith interactive process and assist Plaintiff to transfer to another department with Defendant” and Defendant “failed to respond.” (Compl., ¶ 10.) However, Plaintiff does not allege any facts regarding whether he was able to perform the essential functions of his position.

e.

Failure

to Prevent

The elements of a cause of action for failure to prevent harassment or retaliation are: (1) actionable discrimination or harassment by employees or nonemployees; (2) defendant’s legal duty of care toward plaintiff (i.e., defendant is the plaintiff’s employer); (3) breach of that duty (i.e., failure to take all reasonable steps necessary to prevent discrimination and harassment from occurring); (4) legal causation; and (5) damages to plaintiff. (Trujillo v. North County Transit District (1998) 63 Cal.App.4th 280, 287, 289; Bradley v.

Department of Corrections & Rehabilitation (2008) 158 Cal.App.4th 1612, 1630; Gov. Code, § 12940.)

If “a plaintiff cannot establish a claim for discrimination, the employer as a matter of law cannot be held responsible for failing to prevent same[.]” (Featherstone v. S. California Permanente Med. Grp. (2017) 10 Cal.App.5th 1150, 1166.)

Accordingly, because Plaintiff has failed to allege sufficient facts to establish his cause of action for discrimination, Plaintiff’s claim for Failure to Prevent Discrimination necessarily fails.

f.

FEHA

Retaliation

“To establish a prima facie case of retaliation under the FEHA, a plaintiff must show (1) he or she engaged in a ‘protected activity,’ (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer’s action.” (Meeks v. Autozone, Inc. (2018) 24 Cal.App.5th 855, 878-879, brackets omitted.)

“‘[A]n employee’s conduct may constitute protected activity ... not only when the employee opposes conduct that ultimately is determined to be unlawfully discriminatory under the FEHA, but also when the employee opposes conduct that the employee reasonably and in good faith believes to be discriminatory, whether or not the challenged conduct is ultimately found to violate the FEHA.’ [Citation].” (Dinslage v. City & Cnty. of San Francisco (2016) 5 Cal.App.5th 368, 381.) “‘[A] mistake of either fact or law may establish an employee’s good faith but mistaken belief that he or she is opposing conduct prohibited by FEHA.’ [Citation].” (Ibid.) “In such cases, the question is the reasonableness of the employee’s belief that he was opposing a practice prohibited by the FEHA.” (Ibid.)

The

Court finds that Defendant cannot discern the basis of this cause of action or what protected activity is being asserted. Plaintiff solely alleges in conclusory fashion that Defendant “retaliated against Plaintiff by removing his access to all City systems, including emails, medical benefits, access to City buildings, amongst other adverse actions.” (Compl., ¶ 14.) Further, Plaintiff fails to allege a causal connection between any potential protected activity and the alleged

adverse employment actions.

The

demurrer is sustained in its entirety.

g. Failure to Exhaust Administrative Remedies

The doctrine of exhaustion of administrative remedies requires Plaintiff "to exhaust all available administrative remedies and obtain a final administrative decision as a condition precedent for judicial review." (*Muskan Food & Fuel, Inc. v. City of Fresno* (2021) 69 Cal.App.5th 372, 383.) "Under this rule, an administrative remedy is exhausted only upon termination of all available, nonduplicative administrative review procedures." (*Coachella Valley Mosquito & Vector Control Dist. v. California Public Employment Relations Bd.* (2005) 35 Cal.4th 1072, 1080.) When "an applicable ordinance, regulation or statute provides an adequate administrative remedy, a party must exhaust that remedy before seeking judicial relief." (*Muskan Food & Fuel, Inc. v. City of Fresno*, *supra*, 69 Cal.App.5th at 383.) "In the context of administrative proceedings, a controversy is not ripe for adjudication until the administrative process is completed and the agency makes a final decision that results in a direct and immediate impact on the parties. (Citation.)" (*Tejon*, *supra*, Cal.App.4th 149 at p. 156.)

"A demurrer may properly be sustained based on the failure to adequately plead exhaustion of administrative remedies. (Citation.) In order to withstand a demurrer for failure to allege exhaustion of available administrative remedies, the plaintiff must allege facts showing that he did exhaust administrative remedies or facts showing that he was not required to do so. (Citation.)" (*Ibid.*)

Here,

Plaintiff solely alleges that he "has exhausted the applicable remedies available to him under California Fair Employment and Housing Act by filing a complaint regarding the matters described below with the California Civil Right Department ("CRD"). CRD issued an amended Notice of Case Closure and Right to Sue letter to Plaintiff." (Compl., ¶ 7.) In his opposition, Plaintiff provides for the first time that "[o]n August 7, 2025, Plaintiff amended CRD No. 202411-26976507, and was issued an amended Right to Sue from CRD which

includes claims for disability discrimination, failure to accommodate, retaliated against him due to his disability, failed to prevent discrimination based upon disability and failed to engage in good faith interactive process. On December 15, 2025, due to continuous and new unlawful conduct by Defendant, Plaintiff was issued a new Right to Sue from the CRD, CRD No. 202512-32663016, which includes claims for disability discrimination, failure to accommodate, retaliated against him due to his disability, failed to prevent discrimination based upon disability and failed to engage in good faith interactive process.” (Opp. at p. 3.)

Not only is the memorandum of points and authorities not considered evidence, but a demurrer is concerned solely with the sufficiency of the allegations of the complaint, not with evidence or other extrinsic matters. It lies only where the defects appear on the face of the pleading or may be judicially noticed. (Code Civ. Proc., §§ 430.30, 430.70.) It is therefore inappropriate for the court to rule on a demurrer by considering matters not disclosed in the pleadings. (Ion Equipment Corp. v. Nelson (1980) 110 Cal.App.3d 868, 881.)

Thus, the demurrer is also sustained on the basis that Plaintiff has failed to adequately plead exhaustion of administrative remedies.

V.

CONCLUSION

Based on the foregoing, Defendant's demurrer is SUSTAINED in its entirety with 30 days

leave to amend.

Given the Court's ruling, Defendant's motion to strike is DENIED as moot.

Dated this 4th
day of September 2026

Hon. Gary
D. Roberts

Judge
of the Superior Court